

****30.10.2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in September 2024, an investigation into the operator Untold SRL and found a violation of the provisions of Article 15 and Article 17 paragraph (1) in conjunction with Article 12 paragraphs (3) and (4) of Regulation (EU) 2016/679.

As such, the operator was sanctioned administratively:

- with a fine of 49,741 lei (equivalent to 10,000 EURO), for the violation of Article 15 in conjunction with Article 12 paragraphs (3) and (4) of Regulation (EU) 2016/679;
- with a fine of 24,870.5 lei (equivalent to 5,000 EURO), for the violation of Article 17 paragraph (1) in conjunction with Article 12 paragraphs (3) and (4) of Regulation (EU) 2016/679.

During the investigation, the National Authority for the Supervision of Personal Data Processing found that the operator did not resolve the request for access to the personal data of the data subject, even though the subject had provided their email address, phone number, full name, and postal address for correspondence. This situation led to a violation of the provisions of Article 15, in conjunction with Article 12 paragraphs (3) and (4) of Regulation (EU) 2016/679.

At the same time, it was found that the operator did not resolve the request for deletion of the personal data of the petitioner within the timeframes provided by Regulation (EU) 2016/679, which constituted a violation of the provisions of Article 17 paragraph (1) and Article 12 paragraphs (3) and (4) of the same legislative act.

Additionally, the following corrective measures were imposed on the operator:

- to provide a written response to the request of the data subject in accordance with the provisions of Article 15 of Regulation (EU) 2016/679;
- to ensure compliance with Regulation (EU) 2016/679 in the operations of personal data processing, by adopting the necessary technical and organizational measures, including proper training of the designated personnel for this purpose, so that the operator is capable of analyzing, correctly resolving, and responding to all requests through which data subjects exercise their rights, within the timeframes and according to the conditions provided by Articles 12-23 of Regulation (EU) 2016/679.

****Legal and Communication Directorate****

****N.A.S.P.D.C.P.****